

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS
STATE OF COLORADO

Case No. 2021-4108

FINAL BOARD ORDER

IN THE MATTER OF THE DISCIPLINARY PROCEEDINGS REGARDING SANDRA
RENE AMES, LPC, LICENSE NUMBER LPC-0006556,

Respondent.

The State Board of Licensed Professional Counselor Examiners (“Board”), pursuant to and after formal proceedings before a duly qualified Administrative Law Judge (“ALJ”) in accordance with the provisions of section 12-245-101, et al., of the Colorado Revised Statutes (“Act”) and the Administrative Procedure Act (“APA”), and having reviewed the ALJ’s Initial Decision Upon Default, hereby enters the following findings and order:

1. Respondent Sandra Rene Ames (“Respondent”) was served with a Notice of Charges on October 11, 2021.
2. On or about November 16, 2021, the Board, by and through counsel, filed a Motion for Entry of Default with the Office of Administrative Courts. The ALJ issued an Entry of Default on January 5, 2022.
3. The ALJ’s Entry of Default was mailed to Respondent by first class mail to the address of record on January 5, 2022.
4. The ALJ’s Initial Decision Upon Default was rendered and received by the Board on February 3, 2022. A copy of the Initial Decision Upon Default is attached to this Order and incorporated herein by reference.
5. The Initial Decision was served on Respondent and the Board’s prosecuting attorney on February 7, 2022, via first-class mail and electronic mail.
6. Neither the Board’s prosecuting attorney nor Respondent filed exceptions.
7. Upon review of the Initial Decision and Record, the Board hereby:
 - a. Accepts the Findings of Fact, as set forth in paragraphs one through eight of the attached Initial Decision, in their entirety.

- b. Adopts the Conclusions of Law, as set forth in paragraphs one through seven of the attached Initial Decision, in their entirety.
- c. Adopts the ALJ's recommended sanction of Revocation, as set forth in the final paragraph of the attached Initial Decision.

IT IS THEREFORE ORDERED by the BOARD that Respondent's license to practice as a professional counselor in the state of Colorado is hereby REVOKED from the effective date of this Final Board Order. The Final Board Order is hereby effective upon service to Respondent. Any party adversely affected or aggrieved by any agency action may commence an action for judicial review before the Court of Appeals within forty-nine (49) days after such action becomes effective. Reference sections 24-4-106(11) and 12-20-408, C.R.S.

SO ORDERED this 10th day of March, 2022.

FOR THE STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS



KAREN M. MCGOVERN
DEPUTY DIRECTOR OF LEGAL AFFAIRS

STATE OF COLORADO OFFICE OF ADMINISTRATIVE COURTS 1525 Sherman Street, Denver, CO 80203	
State Board of Licensed Professional Counselor Examiners Petitioner VS. Sandra R Ames Sandra R Ames Respondent	
	▲ COURT USE ONLY ▲
	CASE NUMBER: PCE 2021-0001
NOTICE OF ORDER ISSUANCE	

The attached Initial Decision Upon Default was issued February 03, 2022 in the above referenced case.

Dated: February 3, 2022

/s/ Adriana Chavez

Adriana Chavez
Court Clerk

STATE OF COLORADO OFFICE OF ADMINISTRATIVE COURTS 1525 Sherman Street, 4th Floor, Denver, Colorado 80203 STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS, Petitioner, vs. SANDRA RENE AMES, LPC, License No. LPC.6556, Respondent.	▲ COURT USE ONLY ▲ CASE NUMBER: PCE 2021-0001
INITIAL DECISION UPON DEFAULT	

This case is a disciplinary proceeding before the State Board of Licensed Professional Counselor Examiners ("the Board") involving the license to practice as a professional counselor of Sandra Rene Ames ("Respondent"). The Board was represented by First Assistant Attorney General Robert W. Finke. Respondent did not appear in this proceeding. Based upon Respondent's failure to file an answer to the Board's Notice of Charges, an Entry of Default was issued on January 5, 2022. Respondent then had 10 (ten) days to show good cause why the Entry of Default should be set aside. Section 24-4-105(2)(b), C.R.S. A motion to set aside the entry of default was not filed, and this matter is ready for issuance of an Initial Decision Upon Default.

FINDINGS OF FACT UPON DEFAULT

1. The last address furnished by Respondent to the Board is 11495 Lewistown Street, Commerce City, Colorado 80022-9764. The last email address furnished by Respondent to the Board is srxames1@gmail.com.

2. Notice of the nature of this proceeding, the legal authority and jurisdiction under which it was held, and the matters of fact and law asserted were mailed to Respondent by first class mail to the address stated above, and emailed to Respondent, on October 11, 2021.

3. The Notice of Duty to Answer alerted Respondent that failure to respond to the Notice of Charges within 30 days could result in a default decision issued against Respondent's license to practice in the State of Colorado.

4. No written answer to the Notice of Charges has been filed by Respondent.

5. The Board's Motion for Entry of Default was mailed to Respondent by first class mail to the address stated above, and emailed to Respondent, on November 16, 2021. Respondent did not file a response to the motion.

6. The Administrative Law Judge's Entry of Default was mailed to Respondent by first class mail to the address stated above, and emailed to Respondent, on January 5, 2022.

7. Respondent did not file a motion to set aside the Entry of Default.

8. Respondent is deemed to have admitted all allegations in the Notice of Charges, which are incorporated herein as Findings of Fact.

CONCLUSIONS OF LAW

1. Respondent has received timely notice of the time, place, and nature of this hearing; of all matters of fact and law asserted; and of all matters required by Section 24-4-105(2)(a), C.R.S., in the manner required by that section.

2. The Board has jurisdiction over Respondent and the subject matter of this proceeding.

3. By virtue of Respondent's default the Board is entitled to the relief requested in the Notice of Charges. See Section 24-4-105(2)(b), C.R.S. (2018), and Rule 8 of the Rules of Procedure of the Office of Administrative Courts (1 CCR 104-1).

4. The deemed allegations constitute violations of law as set out in the Notice of Charges.

5. Respondent is subject to discipline pursuant to Sections 12-245-225(1)(c) and 12-20-404(1)(d)(I), C.R.S., because she excessively uses alcohol, in violation of Section 12-245-224(1)(e), C.R.S.

6. Respondent is subject to discipline pursuant to Sections 12-245-225(1)(c) and 12-20-404(1)(d)(I), C.R.S., because she failed to report her excessive use of alcohol to the Board, in violation of Section 12-245-224(1)(f)(I), C.R.S.

7. Respondent is subject to discipline pursuant to Sections 12-245-225(1)(c) and 12-20-404(1)(d)(I), C.R.S., because she failed to submit to a mental status evaluation, in violation of Section 12-245-224(1)(b), C.R.S.

INITIAL DECISION UPON DEFAULT

When the Board has proven that a licensee has violated the licensing law, it may revoke, suspend, or place on probation the licensee's license to practice as a professional counselor. Sections 12-245-225(1)(c) and 12-20-404(1)(d)(I), C.R.S. The

Board seeks an order revoking Respondent's license to practice as a professional counselor. Respondent failed to answer the Notice of Charges. There is no information before the Administrative Law Judge indicating that some sanction other than revocation of Respondent's license to practice as a professional counselor is appropriate in this case. Respondent's failure to appear in this proceeding demonstrates a lack of interest in maintaining her license to practice as a professional counselor. It is therefore the Initial Decision of the Administrative Law Judge that Respondent's license to practice as a professional counselor is revoked.

DONE AND SIGNED this 3rd day of February, 2022.

/s/ MICHELLE A. NORCROSS
Supervising Administrative Law Judge